

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2024-CC-1028

ROSEA REYER ZUNIGA,
MARISOL MONDRAGON and
ANY UNKNOWN PARTY(s) IN POSSESSION,

Defendants.

**MOTION TO MODIFY CAPTION TO COMPLY WITH FLA. STAT. § 48.184 AND
FOR FINAL JUDGMENT FOR POSSESSION**

COMES NOW the Plaintiff, by and through the undersigned counsel, and pursuant to Fla. Stat. §48.184 moves this Honorable Court to enter a judgment for possession against the Defendants, ROSEA REYER ZUNIGA, MARISOL MONDRAGON and against ANY UNKNOWN PARTY(s) IN POSSESSION, not named but believed to be the minor daughter of MARISOL MONDRAGON, and also and especially for a judgment for possession of the premises identified as:

900 Avenue East, Lot 81, Palmetto, FL 34221.

In support of this Motion, the Plaintiff states:

1. Plaintiff brought suit pursuant to Florida Statute 723.061(3) for a writ of possession arising out of the failure of the Defendant, ROSEA REYER ZUNIGA, and ANY UNKNOWN PARTY(s) IN POSSESSION, to pay rent for Lot 81 of Colonial Manor MHC Holdings, LLC, at the time of the complaint, being the sum of \$2,992.13 plus rent for the month of April, 2024, in the amount of \$761.61.

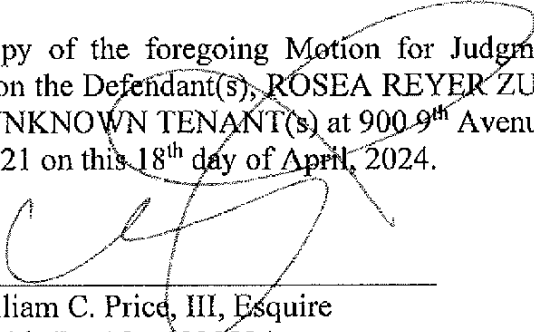
2. Upon effectuating service of process, the process server discovered that one of the parties in possession identified herself as MARISOL MONDRAGON.
3. A person identifying herself as MARISOL MONDRAGON called the undersigned and identified herself as residing at Lot 81.
4. A minor child may also reside in Lot 81, but if they do so, they do without permission of the Plaintiff; MARISOL MONDRAGON does not have permission to reside in Colonial Manor.
5. No Defendants have answered the Complaint, or paid the amount sought in the Complaint alleged to be owed.
6. Service of process has been filed with the Clerk of Court for both MARISOL MONDRAGON and for ROSEA REYER ZUNIGA and ANY UNKNOWN PARTIES IN POSSESSION pursuant to Fla. Stat. §48.184, including, without limitation, through the “three attempt rule” by posting. The proof of service for all three Defendants are incorporated into this Motion as composite Exhibit A and have been filed by the Clerk.
7. Upon discovering MARISOL MONDRAGON, a motion for default has been filed by the Plaintiff and has been issued by the Clerk of Court.
8. The Defendants were also served by the Clerk of Court via Certificates of Mailing, attached as composite Exhibit B.
9. A proposed Judgment for Possession has been delivered to the Court which directs that a writ of possession be issued after ten days from the date of judgment.

WHEREFORE, Plaintiff requests and is entitled to a judgment in default against Defendants for possession of the premises identified as 900 - 9th Avenue East, Lot #81, Palmetto, Florida, 34221, and to further direct the Clerk of Court to thereafter issue a writ of possession at the expiration of ten (10) days.

RESPECTFULLY SUBMITTED this 18th day of April, 2024.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Judgment for Possession has been furnished via U.S. Mail upon the Defendant(s), ROSEA REYER ZUNIGA, against MARISOL MONDRAGON and ANY UNKNOWN TENANT(s) at 900 9th Avenue East, Lot #81, Palmetto, Manatee County, Florida 34221 on this 18th day of April, 2024.



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